Fort Bend County District Court

Cause No. 2025-CV-0010

Shirley Rhodes, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	2-24-25
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

Subject to and without waiving the foregoing general denial, Defendant asserts the following affirmative defenses.

First, Plaintiff's alleged injuries and damages were proximately caused, in whole or in part, by Plaintiff's own negligence. The evidence will show that Plaintiff entered the intersection against a traffic control device or failed to yield the right-of-way at the time of the collision. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced in prooprtion to Plaintiff's percentage of responsibility, and Plaintiff may be barred from recovery if that percentage exceeds fifty percent.

Second, the collision was caused by the negligence of a third party over whom Defendant had no control. Defendant invokes the responsible third party designation procedure under Section 33.004 and reserves the right to join such persons.

Third, Defendant asserts that Plaintiff failed to mitigate damages by unreasonably delaying or forgoing reasonable medical care, and that any recovery for medical expenses must be limited to amounts acutally paid or incurred under Section 41.0105.